

26STCV03941 26STCV03941

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-02

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Case Number: 26STCV03941 Hearing Date: July 2, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE

RULING

DANA CHILDERS, et al.,

Plaintiffs,

v.

UNITED SERVICES AUTOMOBILE

ASSOCIATION, et al.,

Defendants.

Case No:

26STCV03941

Hearing Date: July 2, 2026

Calendar Number: 12

John A. Little, Jr. filed an application to appear pro

hac vice as counsel for Defendants United Services Automobile Association, USAA Casualty Insurance Company, and Garrison Property and Casualty Insurance Company.

The application is DENIED without prejudice.

Background

On February 5, 2026, Plaintiffs Dana Childers, John Childers, among others, initiated this action against Defendants United Services Automobile Association, USAA Casualty Insurance Company, and Garrison Property and Casualty Insurance Company.

On May 13, 2026, John A. Little, Jr. filed an application to appear pro hac vice.

Legal Standard

To be

eligible for admission pro hac vice: (1) the applicant must be admitted to practice before a U.S. court, or the highest court of any state or territory; (2) he or she must not be a California resident, nor regularly engaged in practice or other business here; and (3) a member of the California Bar must be associated as attorney of record in the case. (CRC, rule 9.40(a).)

A

verified application must be filed stating (1) the applicant's residence and office addresses; (2) the court or courts in which he or she is admitted to practice and the dates of admission; (3) that he or she is currently in good standing in such courts; (4) that he or she has not been suspended or disbarred in any court; (5) the title and case number of any California action in which he or she has applied to appear pro hac vice during the preceding two years, the date of each application, and whether or not it was granted; and (6) the name, address and telephone number of the active member of the State Bar who is attorney of record. (CRC, rule 9.40(d)—filing fee must accompany application.)

Copies

of the application must be served by mail upon all parties who have appeared in the action, and also upon the State Bar at its San Francisco office at least 16 court days before the hearing (notice governed by CCP § 1005). A fee must be

paid to the State Bar. (CRC, rule 9.40.)

Discussion

John

A. Little, Jr. seeks a court order permitting him to appear as counsel pro hac vice to represent Defendant.

The Court finds the application does not comply with the requirements of CRC Rule 9.40, as copies of the application must be served upon the State Bar at its San Francisco office. There is no proof of service on the State Bar. While the supplemental proof of service shows proof that the State Bar received the application, Rule 940(c)(1) requires proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application the State Bar at its San Francisco office.